

to a tenant of superintendent's premises. 2006, c. 17, s. 95 (9).

Tenant's notice to terminate, refusal of assignment

96 (1) A tenant may give notice of termination of a tenancy if the circumstances set out in subsection 95 (4) apply. 2006, c. 17, s. 96 (1).

Same

(2) The date for termination specified in the notice shall be at least a number of days after the date of the notice that is the lesser of the notice period otherwise required under this Act and 30 days. 2006, c. 17, s. 96 (2).

Subletting rental unit

97 (1) A tenant may sublet a rental unit to another person with the consent of the landlord. 2006, c. 17, s. 97 (1).

Same

(2) A landlord shall not arbitrarily or unreasonably withhold consent to the sublet of a rental unit to a potential subtenant. 2006, c. 17, s. 97 (2).

Charges

(3) A landlord may charge a tenant only for the landlord's reasonable out-of-pocket expenses incurred in giving consent to a subletting. 2006, c. 17, s. 97 (3).

Consequences of subletting

(4) If a tenant has sublet a rental unit to another person,

(a) the tenant remains entitled to the benefits, and is liable to the landlord for the breaches, of the tenant's obligations under the tenancy agreement or this Act during the subtenancy; and

(b) the subtenant is entitled to the benefits, and is liable to the tenant for the breaches, of the subtenant's obligations under the subletting agreement or this Act during the subtenancy. 2006, c. 17, s. 97 (4).

Overholding subtenant

(5) A subtenant has no right to occupy the rental unit after the end of the subtenancy.

2006, c. 17, s. 97 (5).

Application of section

(6) This section applies with respect to all tenants, regardless of whether their tenancies are periodic, fixed, contractual or statutory, but does not apply with respect to a tenant of superintendent's premises. 2006, c. 17, s. 97 (6).

Tenant application

98 (1) A tenant or former tenant of a rental unit may apply to the Board for an order determining that the landlord has arbitrarily or unreasonably withheld consent to the assignment or sublet of a rental unit to a potential assignee or subtenant. 2006, c. 17, s. 98 (1).

Time limitation

(2) No application may be made under subsection (1) more than one year after the day the alleged conduct giving rise to the application occurred. 2006, c. 17, s. 98 (2).

Order re assignment, sublet

(3) If the Board determines that a landlord has unlawfully withheld consent to an assignment or sublet in an application under subsection (1), the Board may do one or more of the following:

1. Order that the assignment or sublet is authorized.
2. Where appropriate, by order authorize another assignment or sublet proposed by the tenant.
3. Order that the tenancy be terminated.
4. Order an abatement of the tenant's or former tenant's rent. 2006, c. 17, s. 98 (3).

Same

(4) The Board may establish terms and conditions of the assignment or sublet. 2006, c. 17, s. 98 (4).

Same

(5) If an order is made under paragraph 1 or 2 of subsection (3), the assignment or sublet shall have the same legal effect as if the landlord had consented to it. 2006, c. 17, s. 98 (5).

Eviction with termination order

(6) If an order is made terminating a tenancy under paragraph 3 of subsection (3), the Board may order that the tenant be evicted, effective not earlier than the termination date specified in the order. 2006, c. 17, s. 98 (6).

Tenant's notice, application re subtenant

99 The following provisions apply, with necessary modifications, with respect to a tenant who has sublet a rental unit, as if the tenant were the landlord and the subtenant were the tenant:

1. Sections 59 to 69, 87, 89 and 148.
2. The provisions of this Act that relate to applications to the Board under sections 69, 87, 89 and 148. 2006, c. 17, s. 99.

Unauthorized occupancy

100 (1) If a tenant transfers the occupancy of a rental unit to a person in a manner other than by an assignment authorized under section 95 or a subletting authorized under section 97, the landlord may apply to the Board for an order terminating the tenancy and evicting the tenant and the person to whom occupancy of the rental unit was transferred. 2006, c. 17, s. 100 (1).

Time limitation

(2) An application under subsection (1) must be made no later than 60 days after the landlord discovers the unauthorized occupancy. 2006, c. 17, s. 100 (2).

Compensation

(3) A landlord who makes an application under subsection (1) may also apply to the Board for an order for the payment of compensation by the unauthorized occupant for the use and occupation of the rental unit, if the unauthorized occupant is in possession of the rental unit at the time the application is made. 2006, c. 17, s. 100 (3).

Application of s. 87 (5)

(4) Subsection 87 (5) applies, with necessary modifications, to an application under subsection (3). 2006, c. 17, s. 100 (4).

Overholding subtenant

101 (1) If a subtenant continues to occupy a rental unit after the end of the subtenancy, the landlord or the tenant may apply to the Board for an order evicting the subtenant. 2006, c. 17, s. 101 (1).

Time limitation

(2) An application under this section must be made within 60 days after the end of the subtenancy. 2006, c. 17, s. 101 (2).

Compensation, overholding subtenant

102 A tenant may apply to the Board for an order for compensation for use and occupation by an overholding subtenant after the end of the subtenancy if the overholding subtenant is in possession of the rental unit at the time of the application. 2006, c. 17, s. 102.

Compensation, unauthorized occupant

103 (1) A landlord is entitled to compensation for the use and occupation of a rental unit by an unauthorized occupant of the unit. 2006, c. 17, s. 103 (1).

Effect of payment

(2) A landlord does not create a tenancy with an unauthorized occupant of a rental unit by accepting compensation for the use and occupation of the rental unit, unless the landlord and unauthorized occupant agree otherwise. 2006, c. 17, s. 103 (2).

Miscellaneous new tenancy agreements

Assignment without consent

104 (1) If a person occupies a rental unit as a result of an assignment of the unit without the consent of the landlord, the landlord may negotiate a new tenancy agreement with the person. 2006, c. 17, s. 104 (1).

Overholding subtenant

(2) If a subtenant continues to occupy a rental unit after the end of the subtenancy and the tenant has abandoned the rental unit, the landlord may negotiate a new tenancy agreement with the subtenant. 2006, c. 17, s. 104 (2).

Lawful rent

(3) Sections 113 and 114 apply to tenancy agreements entered into under subsection (1) or (2) if they are entered into no later than 60 days after the landlord discovers the unauthorized occupancy. 2006, c. 17, s. 104 (3).

Deemed assignment

(4) A person's occupation of a rental unit shall be deemed to be an assignment of the rental unit with the consent of the landlord as of the date the unauthorized occupancy began if,

- (a) a tenancy agreement is not entered into under subsection (1) or (2) within the period set out in subsection (3);
- (b) the landlord does not apply to the Board under section 100 for an order evicting the person within 60 days of the landlord discovering the unauthorized occupancy; and
- (c) neither the landlord nor the tenant applies to the Board under section 101 within 60 days after the end of the subtenancy for an order evicting the subtenant. 2006, c. 17, s. 104 (4).

PART VII RULES RELATING TO RENT

GENERAL RULES

Security deposits, limitation

105 (1) The only security deposit that a landlord may collect is a rent deposit collected in accordance with section 106. 2006, c. 17, s. 105 (1).

Definition

(2) In this section and in section 106,

“security deposit” means money, property or a right paid or given by, or on behalf of, a tenant of a rental unit to a landlord or to anyone on the landlord’s behalf to be held by or for the account of the landlord as security for the performance of an obligation or the payment of a liability of the tenant or to be returned to the tenant upon the happening of a condition. 2006, c. 17, s. 105 (2).

Rent deposit may be required

106 (1) A landlord may require a tenant to pay a rent deposit with respect to a tenancy if the landlord does so on or before entering into the tenancy agreement. 2006, c. 17, s. 106 (1).

Amount of rent deposit

(2) The amount of a rent deposit shall not be more than the lesser of the amount of rent for one rent period and the amount of rent for one month. 2006, c. 17, s. 106 (2).

Same

(3) If the lawful rent increases after a tenant has paid a rent deposit, the landlord may require the tenant to pay an additional amount to increase the rent deposit up to the amount permitted by subsection (2). 2006, c. 17, s. 106 (3); 2013, c. 3, s. 32 (1).

Qualification

(4) A new landlord of a rental unit or a person who is deemed to be a landlord under subsection 47 (1) of the *Mortgages Act* shall not require a tenant to pay a rent deposit if the tenant has already paid a rent deposit to the prior landlord of the rental unit. 2006, c. 17, s. 106 (4).

Exception

(5) Despite subsection (4), if a person becomes a new landlord in a sale from a person deemed to be a landlord under subsection 47 (1) of the *Mortgages Act*, the new landlord may require the tenant to pay a rent deposit in an amount equal to the amount with respect to the former rent deposit that the tenant received from the proceeds of sale. 2006, c. 17, s. 106 (5); 2013, c. 3, s. 32 (2).

Interest

(6) A landlord of a rental unit shall pay interest to the tenant annually on the amount of the rent deposit at a rate equal to the guideline determined under section 120 that is in effect at the time payment becomes due. 2006, c. 17, s. 106 (6).

Deduction applied to rent deposit

(7) The landlord may deduct from the amount payable under subsection (6) the amount, if any, by which the maximum amount of the rent deposit permitted under subsection (2) exceeds the amount of the rent deposit paid by the tenant and the deducted amount shall be deemed to form part of the rent deposit paid by the tenant. 2006, c. 17, s. 106 (7).

Transition

(8) Despite subsection (6), the first interest payment that becomes due under subsection (6) after the day this subsection comes into force shall be adjusted so that,

- (a) the interest payable in respect of the period ending before the day this subsection comes into force is based on the annual rate of 6 per cent; and
- (b) the interest payable in respect of the period commencing on or after the day this subsection comes into force shall be based on the rate determined under subsection (6). 2006, c. 17, s. 106 (8).

Deduction of interest from rent

(9) Where the landlord has failed to make the payment required by subsection (6) when it comes due, the tenant may deduct the amount of the payment from a subsequent rent payment. 2006, c. 17, s. 106 (9).

Rent deposit applied to last rent

(10) A landlord shall apply a rent deposit that a tenant has paid to the landlord or to a former landlord in payment of the rent for the last rent period before the tenancy terminates. 2006, c. 17, s. 106 (10).

▼ Section Amendments with date in force (d/m/y)

Rent deposit, prospective tenant

107 (1) A landlord shall repay the amount received as a rent deposit in respect of a rental unit if vacant possession of the rental unit is not given to the prospective tenant. 2006, c. 17, s. 107 (1).

Exception

(2) Despite subsection (1), if the prospective tenant, before he or she would otherwise obtain vacant possession of the rental unit, agrees to rent a different rental unit from the landlord,

(a) the landlord may apply the amount received as a rent deposit in respect of the other rental unit; and

(b) the landlord shall repay only the excess, if any, by which the amount received exceeds the amount of the rent deposit the landlord is entitled to receive under section 106 in respect of the other rental unit. 2006, c. 17, s. 107 (2).

Post-dated cheques, etc.

108 Neither a landlord nor a tenancy agreement shall require a tenant or prospective tenant to,

(a) provide post-dated cheques or other negotiable instruments for payment of rent; or

(b) permit automatic debiting of the tenant's or prospective tenant's account at a financial institution, automatic charging of a credit card or any other form of automatic payment for the payment of rent. 2006, c. 17, s. 108; 2009, c. 33, Sched. 21, s. 11 (3, 4).

▼ Section Amendments with date in force (d/m/y)

Receipt for payment

109 (1) A landlord shall provide free of charge to a tenant or former tenant, on request, a receipt for the payment of any rent, rent deposit, arrears of rent or any other amount paid to the landlord. 2006, c. 17, s. 109 (1).

Former tenant

(2) Subsection (1) applies to a request by a former tenant only if the request is made

within 12 months after the tenancy terminated. 2006, c. 17, s. 109 (2).

GENERAL RULES GOVERNING AMOUNT OF RENT

Landlord's duty, rent increases

110 No landlord shall increase the rent charged to a tenant for a rental unit, except in accordance with this Part. 2006, c. 17, s. 110.

Landlord not to charge more than lawful rent

111 (1) No landlord shall charge rent for a rental unit in an amount that is greater than the lawful rent permitted under this Part. 2006, c. 17, s. 111 (1).

Lawful rent where prompt payment discount

(2) The lawful rent is not affected by a discount in rent at the beginning of, or during, a tenancy of up to 2 per cent of the rent that could otherwise be lawfully charged for a rental period if the discount is provided for paying rent on or before the date it is due and the discount meets the prescribed conditions. 2009, c. 33, Sched. 21, s. 11 (5).

Lawful rent where another discount

(2.1) The lawful rent is not affected if one of the following discounts is provided:

1. A discount in rent at the beginning of, or during, a tenancy that consists of up to three months rent in any 12-month period if the discount is provided in the form of rent-free periods and meets the prescribed conditions.
2. A prescribed discount. 2009, c. 33, Sched. 21, s. 11 (5).

Lawful rent where both discounts provided

(2.2) For greater certainty, the lawful rent is not affected if discounts described in subsections (2) and (2.1) are both provided. 2009, c. 33, Sched. 21, s. 11 (5).

Same

(3) Subject to subsections (2) and (2.1), where a landlord offers a discount in rent at the beginning of, or during, a tenancy, the lawful rent shall be calculated in accordance with the prescribed rules. 2006, c. 17, s. 111 (3); 2009, c. 33, Sched. 21, s. 11 (6).

Lawful rent where higher rent for first rental period

(4) Where the rent a landlord charges for the first rental period of a tenancy is greater than the rent the landlord charges for subsequent rental periods, the lawful rent shall be calculated in accordance with the prescribed rules. 2006, c. 17, s. 111 (4).

▼ Section Amendments with date in force (d/m/y)

Lawful rent when this section comes into force

112 Unless otherwise prescribed, the lawful rent charged to a tenant for a rental unit for which there is a tenancy agreement in effect on the day this section comes into force shall be the rent that was charged on the day before this section came into force or, if that amount was not lawfully charged under the *Tenant Protection Act, 1997*, the amount that it was lawful to charge on that day. 2006, c. 17, s. 112.

Lawful rent for new tenant

113 Subject to section 111, the lawful rent for the first rental period for a new tenant under a new tenancy agreement is the rent first charged to the tenant. 2006, c. 17, s. 113.

Notice to new tenant, order under par. 6, 7 or 8 of s. 30 (1) in effect

114 (1) If an order made under paragraph 6, 7 or 8 of subsection 30 (1) is in effect in respect of a rental unit when a new tenancy agreement relating to the rental unit is entered into, the landlord shall, before entering into the new tenancy agreement, give to the new tenant written notice about the lawful rent for the rental unit in accordance with subsection (3). 2006, c. 17, s. 114 (1).

Same

(2) If an order made under paragraph 6, 7 or 8 of subsection 30 (1) takes effect in respect of a rental unit after a new tenancy agreement relating to the rental unit is entered into but before the tenancy agreement takes effect, the landlord shall, before the tenancy agreement takes effect, give to the new tenant written notice about the lawful rent for the rental unit in accordance with subsection (3). 2006, c. 17, s. 114 (2).

Contents of notice